Michael C. O'Connor
Mayor

César Díaz
City Council President

FREDERICK
OFFICE OF THE MAYOR

September 21, 2026

The Honorable Anthony G. Brown
Attorney General of Maryland
Office of the Attorney General
200 St. Paul Place
Baltimore, Maryland 21202

Dear Attorney General Brown:

On behalf of the City of Frederick, we write to request that your office investigate the conduct of U.S. Immigration and Customs Enforcement personnel during the approximately 40-hour federal immigration enforcement operation conducted in a Frederick neighborhood earlier this month, which resulted in zero arrests, several first amendment demonstrations, multiple uses of force by federal agents and a neighborhood left scarred by the actions. We also urgently request guidance regarding the responsibilities and authority of local police officers who witness federal agents using force that would appear to violate Maryland law and local use-of-force standards.

The conduct documented on publicly available video includes a federal vehicle being driven onto a public sidewalk in the direction of demonstrators; Frederick Police Department body-worn camera footage shows physical force used against individuals, including people who appeared to be passively resisting; the use of a baton; the forcible removal of individuals from the entrance to a residence. Additionally, reports of statements to elected officials conveying that federal agents knew their names, license-plate information, and home addresses were reasonably understood as threatening or intimidating.

We recognize the distinction between lawful observation and protest and conduct that physically obstructs law-enforcement activity. FPD officers addressed unlawful obstruction when it occurred, including directing demonstrators to clear a public roadway and advising them of the potential consequences of failing to comply. The demonstrators complied and cleared the street. That does not diminish the serious concerns raised by the actions of federal personnel during the operation.

If comparable conduct involved Frederick police officers, all of these incidents would unquestionably trigger immediate supervisory review and internal use-of-force investigations. Based on the information currently available, conduct captured during the operation appears

inconsistent with the standards of necessity, proportionality, de-escalation, and cessation of force that apply to local officers under Maryland law and FPD policy.

During the incident, an FPD supervisor observed an ICE agent using an escalating level of force against a demonstrator who appeared to be passively resisting. Body-worn camera footage shows the supervisor intervening verbally and directing the federal agent to stop. The agent complied, and that particular use of force ended.

We support the supervisor's decision to act to protect a member of the public. We are deeply concerned, however, about what could have occurred if the ICE agent had refused the supervisor's direction, continued escalating the force, or redirected force toward the FPD supervisor.

Maryland's Use of Force Statute, Public Safety § 3-524, requires a police officer to "intervene to prevent or terminate the use of force by another police officer" when that force exceeds what the statute authorizes. It also requires force to be necessary and proportional and directs officers to de-escalate conflict when time, circumstances, and safety allow.

What remains unclear is how those obligations apply when a Maryland officer witnesses potentially unlawful or excessive force by a federal agent. The statute defines "police officer" by reference to Public Safety § 3-201, creating uncertainty about whether the express duty to intervene applies to force used by federal personnel. There are also unresolved questions regarding what authority a local officer may exercise, what degree of intervention is permitted, and what protections exist if the federal government challenges that intervention.

Our officers cannot be left to resolve those questions in seconds during a volatile confrontation involving armed federal personnel. FPD will do everything within its lawful authority to protect Frederick residents. But our officers should not have to choose between complying with Maryland's use-of-force principles and risking arrest, prosecution, civil liability, professional consequences, or retaliation from the federal government.

A recurrence of these circumstances could be more volatile. And the consequences of continued uncertainty could be catastrophic for residents, demonstrators, local officers, and federal personnel.

We therefore respectfully request that the Office of the Attorney General:

1. Conduct an independent investigation into the actions of federal personnel during the Frederick operation, including:
    - The federal vehicle being driven onto the public sidewalk in the direction of demonstrators;
    - Each documented use of force;
    - The use of force against individuals who appeared to be passively resisting;
    - The statements made to elected officials regarding their identities, vehicles, and home addresses;
    - The entry into the residence and the legal basis asserted for that entry;
    - Whether any conduct implicated Maryland criminal law, Maryland civil-rights protections, or other applicable state law; and
    - Whether additional investigation, referral, or legal action is warranted.
2. Seek the preservation and production of all relevant federal judicial search warrants, body-worn camera footage, vehicle video, radio communications, operational plans, supervisory communications, use-of-force reports, warrant materials, and documentation of any claimed consent to enter or search the residence.
3. Provide written guidance regarding:
    - Whether Public Safety § 3-524 requires a Maryland police officer to intervene when the force is being used by a federal law-enforcement agent;
    - Whether another provision of Maryland law, constitutional law, common law, or an officer's general public-safety authority requires or authorizes intervention;
    - What forms of intervention are permissible, including verbal direction, physical separation, detention, arrest, or the use of reasonable force to prevent injury;
    - What an officer should do if a federal agent refuses a verbal intervention and continues using apparently excessive or unlawful force;
    - What authority an officer has if a federal agent threatens or uses force against the intervening officer;

- Whether and under what circumstances a local officer may detain or arrest a federal agent when the officer has probable cause to believe the agent has violated Maryland criminal law;
- How federal supremacy, immunity, and removal doctrines affect those decisions; and
- What reporting, notification, and command-level procedures should immediately follow any such intervention.

4. Clarify what legal and institutional support the State of Maryland will provide if a local officer, acting reasonably and in good faith to comply with Maryland law and protect a member of the public, faces federal investigation, arrest, prosecution, civil litigation, employment consequences, or other retaliation as a result.

Our officers need assurance that Maryland will stand behind them when they act reasonably, in good faith, and in accordance with the laws and policing standards of this state. We respectfully ask your office to identify what that support would include, such as legal advocacy, coordination with federal authorities, intervention in litigation, defense of Maryland law, or other appropriate action within your authority.

We also request that your office convene an expedited meeting with City leadership, the Frederick Police Department, the City Attorney's Office, the Maryland Police Training and Standards Commission, and other appropriate state officials. The objective should be to establish clear, practical guidance that can be incorporated into FPD policy, training, supervision, and operational planning before another federal operation creates the same conflict.

This is a jurisdictional question our officers have already confronted, and thankfully it was resolved without harm. One supervisor intervened, and the federal agent complied. We need to know what the officer's responsibilities and protections would have been if the agent had not.

The City of Frederick is committed to protecting constitutional rights, maintaining public safety, and supporting professional law enforcement. Those commitments require an independent examination of what occurred, clear rules for any future incident, and confidence that the State of Maryland will support local officers who act lawfully to protect the public.

We respectfully request an initial meeting and written guidance as expeditiously as possible.

Sincerely,

Michael C. O'Connor
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District 2